

15408

AMENDMENT TO RESTRICTIONS

THE STATE OF TEXAS

COUNTY OF BRAZORIA

This Amendment to Restrictions executed on this 17th day of August, 1972, by Tenneco Realty Development Corporation, a Delaware corporation,

W I T N E S S E T H:

WHEREAS, Tenneco Realty Development Corporation, being the owner of that certain tract of land situate in Brazoria County, Texas, which has heretofore been platted into that certain subdivision known as "Columbia Lakes," according to the plat of Section 1 of said subdivision recorded in Volume 14 at Pages 37 and 38 of the Plat Records of Brazoria County, Texas, and the plat of Section 2 of said subdivision recorded in Volume 14 at Pages 53 and 54 of the Plat Records of Brazoria County, Texas, has heretofore adopted and impressed restrictions upon Section 1 of said subdivision, according to that certain instrument of Restrictions dated July 18, 1972, and recorded in Volume 1128 at Page 911 of the Deed Records of Brazoria County, Texas, said instrument of Restrictions being hereinafter referred to as the "Restrictions"; and

WHEREAS, Tenneco Realty Development Corporation is the "Developer" as such term is defined in the aforesaid Restrictions; and

WHEREAS, Article I of the Restrictions reserves the right to the Developer to amend the Restrictions to include Sections of Columbia Lakes in addition to Section 1; and

WHEREAS, Article II, Paragraph 4 of the Restrictions provides that at any time and from time to time the then owner(s) of a majority of lots in the Subdivision as "Subdivision" is therein defined

(including lots owned by the Developer) shall have the right to execute and record an instrument or instruments changing the provisions of the Restrictions in whole or in part; and

WHEREAS, Tenneco Realty Development Corporation is the owner as of the date hereof of 339 of the 409 lots in Section 1 of the Subdivision, said 339 lots being a majority of lots in the Subdivision; and

WHEREAS, Tenneco Realty Development Corporation is the owner, as of the date hereof of all of the lots in Section 2 of said subdivision;

NOW, THEREFORE, KNOW ALL MEN BY THESE PRESENTS, That Tenneco Realty Development Corporation does hereby adopt and promulgate the following amendments to the Restrictions:

I.

The caption of said instrument of Restrictions appearing at page 1 of said Restrictions shall be amended to read as follows:

RESTRICTIONS

COLUMBIA LAKES SUBDIVISION

II.

The definition of "Subdivision" appearing in Article II at page 1 of the Restrictions shall be amended to read as follows:

Subdivision - Columbia Lakes, Section 1 and Section 2, according to the recorded plat of Section 1 on file in Volume 14 at Pages 37 and 38 of the Plat Records of Brazoria County, Texas, and the recorded plat of Section 2 on file in Volume 14 at Pages 53 and 54 of the Plat Records of Brazoria County, Texas; and it is the intention of the Developer to include all of the premises, except as herein expressly excluded, in said plats and that said premises are to be divided according to said plats into lots and blocks as shown on said plats.

The Developer hereby reserves the right to amend this instrument (by appropriate instrument which when executed and recorded shall constitute an amendment to this instrument) to include other Sections located within Columbia Lakes. Following such amendment to this instrument, such section(s) shall be included in the definition of "Subdivision."

III.

The paragraph heading of Article IV, Paragraph 17, at page 13 of the Restrictions shall be amended, and the first sentence of said paragraph shall be deleted so that Article IV, Paragraph 17, shall read as follows:

Enclosed Foundations

17. Elevated dwellings or those constructed on poles or pilings shall have the foundation enclosed as approved by the Developer or the Architectural Control Committee, as the case may be.

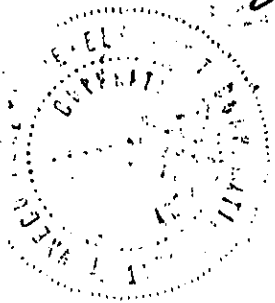
IN WITNESS WHEREOF, Tenneco Realty Development Corporation has caused this instrument to be executed by its officers thereunto duly authorized on the day and year first above written and to become effective on the day next following the day on which this instrument is recorded in the Deed Records of Brazoria County, Texas.

TENNECO REALTY DEVELOPMENT CORPORATION

By Kenneth H. Klopp
Kenneth H. Klopp, President

ATTEST:

L. H. Jensen
Secretary



VOL 1131 PAGE 681

THE STATE OF TEXAS I

COUNTY OF HARRIS 1

BEFORE ME, the undersigned authority, on this day personally appeared Kenneth H. Klopp, known to me to be the person whose name is subscribed to the foregoing instrument as President of TENNECO REALTY DEVELOPMENT CORPORATION, and acknowledged to me that he executed the same for the purposes and consideration therein expressed, in the capacity therein stated, and as the act and deed of said corporation.

GIVEN UNDER MY HAND AND SEAL OF OFFICE, on this the 17th
day of August, 1972.

Notary Public in and for
Harris County, Texas

BARBARA H. REYNOLDS
Notary Public in and for Harris County, Texas
My Commission Expires June 1, 1973

FILED FOR RECORD
AT 1:30 O'CLOCK 7 M.

AUG 18 1972

H. R. STEVENS, JR.
CLERK COUNTY COURT, BRAZORIA CO., TEXAS
BY [Signature] DEPUTY

NOB-18-72	1 12 24 1	20	935100	A RB	4.50
NOB-18-72	1 12 24 2	20	935100	A EB	15.00